IN THE COURT OF APPEAL
LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS
ON TUESDAY, THE 2ND DAY OF DECEMBER, 2014

BEFORE THEIR LORDSHIPS:

JOSEPH SHAGBAOR IKYEGH	**JUSTICE, COURT OF APPEAL**
YARGATA BYENCHIT NIMPAR	**JUSTICE, COURT OF APPEAL**
JAMILU YAMMAMA TUKUR	**JUSTICE, COURT OF APPEAL**

CA/L/320/2009

BETWEEN:

FEDERAL BOARD OF INLAND REVENUE - - - - - **APPELLANT**

AND

HALLIBURTON (WA) LIMITED - - - - - - **RESPONDENT**

JUDGMENT
(DELIVERED BY JOSEPH SHAGBAOR IKYEGH, JCA)

The appeal is from the decision of the Federal High Court Lagos (the court below) which had set aside the judgment of the Body of Appeal Commissioners (the Body) respecting a tax matter decided by the Body in the appellant's favour.

Sketchily, the facts that bear on the appeal indicated that the appellant had made additional assessment of US$6,927,248 (six million, nine hundred and twenty seven thousand, two hundred and forty eight dollars) for the tax years of 1996, 1997, 1998 and 1999 on the respondent which was affirmed by the Body. The respondent appealed to the court below on points of law alone seeking an order of the court below to set aside the judgment of the Body by declaring the said additional assessment invalid, null and void and directing the appellant to refund to the respondent the said sum of US$6,927,248 with interest thereon to be determined by the court below.

The additional assessment arose from contract transactions between the respondent, a foreign or non-resident company incorporated in Cayman Islands, and its affiliate operating in Nigeria under the entity called Halliburton Energy Services Nigeria Limited (HESNL). It was agreed between the respondent and HESNL that the respondent would obtain contracts from third parties in Nigeria for execution by HESNL with billing for the contracts made in United States of America (U.S.A.) Dollars. It was the income in U.S.A. Dollars derived by the respondent from the services rendered by HESNL to third parties that the appellant taxed additionally in 2002 to the tune of US$6,972,248 (six million, nine hundred and seventy two thousand, two hundred and eight dollars) for the years of 1996 – 1999 that brought the dispute to the Body.

In resolving the dispute, the Body held that the working arrangement between the appellant and HESNL was illegal in that the division of the contract sum between the respondent and HESNL on turnover of each company was not incorporated in the main contract between all the parties to the main contract.

In further resolution of the dispute the Body held as untenable the respondent's grouse that having paid the initial tax originally assessed by the appellant based on money paid by the respondent to HESNL for the expenses incurred in executing certain contracts pursuant to the parent contract as not allowable deductions and are thus taxable in the hands of the respondent. The Body dismissed the said complaint reasoning that the said revenue was taxable upon which it assessed the disputed amount of tax in question as recharges and ordered the respondent to pay it to the appellant forthwith. The respondent complied with the order made by the Body.

The court below disagreed with the Body and held that the additional tax amounted to double taxation and that the Body was wrong to raise and decide suo motu the question of the illegality of the working arrangement between the respondent and HESNL against the respondent without affording the parties the opportunity to react to it.

The court below ended by setting aside the judgment of the Body and ordering the appellant to refund to the respondent the additional tax of US$6,972,248 (six million, nine hundred and seventy two thousand, two hundred and eight dollars) the respondent had paid to the appellant.

Unhappy with the decision of the court below, the appellant filed an original notice of appeal with a single ground of appeal on 19-06-06, which was subsequently amended. The amended notice of appeal with six grounds of appeal was filed on 24-3-09. Ground V of the amended notice of appeal was said to have been filed in error as it is not included in Exhibit B, the proposed amended notice of appeal, and was on that account withdrawn by the appellant in page 6 of the appellant's brief of argument and is hereby struck out.

The grounds of appeal in the amended notice of appeal were renumbered by the appellant in pages 6 – 8 of the appellant's brief of argument. The said brief of argument filed on 27-5-10, identified these issues for determination on the appeal –

> *"(i) Whether it was a misdirection for the court below to rely on the decision in* ***Ibori v. Agbi (2004) 6 NWLR (pt.868) 78*** *to set aside a finding of fact made by the Body of Appeal Commissioners and if the answer is in the affirmative, whether the Respondent could take advantage of an illegal contract. (Grounds (i), (ii) and (iii)).*

(ii) *Whether the Judge in the court below was not in error when he invalidated the additional assessment to tax of the Respondent by the Appellant for 1996, 1997, 1998 and 1999. (Grounds (iv) and (v)).*

(iii) *Whether there was any legal basis for the Judge in the court below to hold that there was double taxation".*

After citing and discussing extensively the decision of the Apex Court in **Ibori v. Agbi (2004) 6 NWLR (pt.868) 78** relied upon by the court below, the appellant submitted on issue (i) (supra) that the proper appreciation of the said decision lies in the central reasoning of the Apex Court therein that a court raising an issue suo motu and deciding on it would make its decision impeachable only if the decision reached thereat occasioned a miscarriage of justice and that the onus is on the person attacking the decision to demonstrate that it caused miscarriage of justice as defined in the case of **Okonkwu v. Udoh (1997) 9 NWLR** (pt.519) 16 before an appeal court will intervene to set aside the decision.

The appellant elaborated her discussion on issue (i) that as the respondent did not appeal against the holding of the court below that the Body was mistaken in holding that Exhibits F and G breached section 54 of the Companies and Allied Matters Act, 2004, (CAMA), the said decision should stand; that Exhibits F and G disclose ex facie a transaction between ELF Petroleum Nigeria Ltd. and the respondent and its Nigerian affiliate, HESNL, which violated section 54(1) of CAMA and rendered it void as the respondent was not registered in Nigeria vide **NBA v. Aladejobi (2008) 14 NLWR (pt.1108) 611**, therefore neither the respondent, nor HESNL, could reap enforceable benefits from the void transaction in question; nor did it preclude the appellant from assessing the respondent to tax even though the source of its income be illegal vide section 13 of Companies Income Tax Act (CITA) read with the cases of **F.A.B.S. Ltd v. Ibiyeye (2008) 14 NWLR (pt.1107) 375**, **Pan Bis Builder v. First Bank of Nigeria Ltd. (2001) 1 NWLR (pt.612) 684**, **Solanke v. Abed (1962) 1 SCNLR 371.**

It was also argued that the court could take judicial notice of a contract that is ex facie illegal vide **S.D.C. Cem. (Nig.) Ltd. v. Nagel and Co. Ltd. (2003) 4 NWLR (pt.811) 611 at 638 – 639**, **Edicomsa International Inc. and Associates v. CITEC International Estate (2201) All FWLR (pt.357) 990 at 1000 – 1001** and **F.A.B.S. v. Ibiyeye (supra).**

The appellant further argued that the Body, as a fact finding entity, did not misconceive the issues before it, nor did the Body summarise the evidence inadequately; and that the Body did not make mistake of law but acted on the evidence vide Exhibits F and G showing the Body did not commit "a misdirection" within the meaning assigned to the phrase in the case of **Chidiak v. Laguda (1964) NMLR 123 at 125**, **Nwadike v. Ibekwe**

(1987) 4 NWLR (pt.67) 798 and Okonkwo v. Udoh (supra), therefore the court below was wrong to interfere with the findings of fact made by the Body that the contract transaction in Exhibits F and G were illegal and the appeal be allowed on this issue citing in support the cases of **Okonkwo v. Udo (supra), Ibori v. Agbi (supra)**.

In arguing issues (ii) and (iii) (supra) together the appellant highlighted the interpretation of section 26(1) of CITA by the court below to contend that the court below was wrong in its construction of the said provision of CITA to hold that the Body erred in holding that the appellant could not tax the amount the respondent received under the contract inclusive of the money the respondent paid over to HESNL in executing the contract and 4 percent fee when HESNL would also pay tax on what it receives under the contract, as to allow the tax would be double taxation.

The appellant expatiated her arguments under issues (ii) and (iii) (supra) that by the overriding provision of section 26(1) of CITA the appellant was entitled to assess tax on account of the business in Exhibit G and other unreported sources of income of the respondent, irrespective of the facts that the business may have been carried out outside Nigeria, and/or the appellant was entitled to raise additional assessment, as in this case, or where the profit in the opinion of the appellant is less than might be expected to arise from the transaction or in situation where the true amount of assessable profit cannot be readily ascertained, which extends to any fair and reasonable charge attributable to the fixed base of a foreign company.

It was also argued that the expression "notwithstanding" used in section 26(1) of CITA has overriding effect and precluded the court below from giving extrapolated construction of the provision in question contrary to the decision in **N.D.I.C. v. Okem Enterprises Ltd. (2004) All FWLR (pt.210) 1176** to the effect that the term *"notwithstanding"* excludes "an impinging or impending effect" of any provisions of the statute or other subordinate legislation.

It was further argued that by taxing the entire sum received by the respondent including the part it gave HESNL from the transaction in Exhibits F and G, the respondent whose fixed base is HESNL did not amount to double taxation; and that the court below erred in holding that the Body was wrong in its decision that the appellant rightly taxed the total income garnered by the respondent from the transaction in Exhibits F and G, upon which the appellant urged that issues (ii) and (iii) be resolved in her favour and the appeal be allowed and the decision of the Body restored.

The respondent raised these issues for determination in her brief of argument filed on 23.1.14 –

> "a. *Whether the learned appellant judge was correct in holding that the Body of Appeal Commissioners was wrong in suo motu declaring exhibits G & F illegal and was therefore correct in proceeding to set aside that decision?*
>
> b. *If the answer to (a) above is in the negative, whether exhibits G & F were indeed illegal?*
>
> c. *Whether upon an interpretation of Section 26 of CITA, the words of that statute is one that allows for respondent's recharges?".*

Issue (a) (supra) was tied to grounds 1 and 3 of the amended notice of appeal. After conceding that an issue of ex-facie illegality of a contract or transaction may be raised suo muto as a point of law by the court, the respondent contended that the party who would suffer the consequence of a finding of illegality ought to be given an opportunity by the court to react to it and; that the Body having raised the question of the illegality of the transaction in Exhibits F and G suo motu without affording the respondent the opportunity to respond to it before it made adverse findings on it against the respondent, thus causing a miscarriage of justice to the respondent, the court below was right in holding that the Body was in error in the circumstances vide section 36 of the 1999 Constitution dealing with fair hearing read with the cases of **Ziideeh v. Rivers State Civil Service**

Commission (2007) 3 NWLR (pt. 1115) 554 at 568, Adigun and Ors v. A.G., Oyo State (1987) 1 N.S.C.C. (pt. 1) (vol. 18) 346 at 369 and 380, Yakaje v. Haire (2003) 10 NWLR (pt. 828) 270 at 283 – 284, Lexington International Insurance Co. Ltd. v. Sola Holdings Ltd. (2006) 7 NWLR (pt. 980) 465 at 476, Pam and Ors. v. Lawal and Anor. (2008) 17 NWLR (pt. 1115) 1 at 37, Orugbo v. Una (2002) 16 NWLR (pt. 792) 175 at 199, Idakwo v. Ejiga and Anor. (2002) 13 NWLR (pt. 783) 156 at 166 – 167, 227, irolo v. uka (2002) 14 NWLR (pt. 786) 195 at 225.

After tying issue (b) to ground 2 of the amended notice of appeal, the respondent argued that Exhibit F, G and K read together disclosed that the respondent, a contractor not registered in Nigeria, did not carry on business in Nigeria, but only sourced for contracts in Nigeria vide the finding of the Body which cannot be reviewed on appeal in virtue of section 57 of CITA to the effect that an appeal against the decision of the Body to the court below shall be on points of law alone, therefore the said activities of the respondent were not illegal or void as they did not amount to carrying on business in Nigeria within the meaning of section 54 of CAMA read with the definition of the phrase *"carry on business"* in Black's Law Dictionary (5th Edition) 194 and the cases of **Edicomsa International Inc. and Associates v. Citec International Estates Ltd. (2006) 4 NWLR (pt. 969)**

114 at 125 – 136, Okura and Co. Ltd. v. Forsbacka Jernverks Aktiebolag (1914) 1 K.B. 715, Mitchell v. Egyptian Hotels Ltd. (1915) A.C. 1038, Reiss and Co. (Nig.) Ltd. v. Federal Board of Inland Revenue (1977) NCLR 443 at 445, Ezebube v. Thomas Alpine and Co. Ltd. (1966) NCLR 39 at 42, Ritz Pumpenfabrik GMBH and Co. KG v. Techno Continental Engineers (Nig) Ltd. and Anor. (1999) 4 NWLR (pt. 598) 298 at 306, Olorunfemi v. Asho (1999) 1 NWLR (pt. 585) 1 at 9, Chukwueke v. Okoronkwo (1999) 1 NWLR (pt. 587) 410 at 418.

Arising from the position presented (supra) by the respondent, it was urged that the activities of the respondent of providing equipment from overseas to HESNL which HESNL cleared at the port and the provision of technical staff to HESNL to handle its machinery as well as the execution of part of the contracts offshore when required with payments on a cost plus basis for executing the contracts on the strength of Exhibits F, G and K did not amount to carrying on business in Nigeria by the respondent within the ambit of section 54 of CAMA.

It was also argued that by the effective construction of section 26 (1) (b) (ii) and (iii) of CITA the respondent, a foreign company not registered in Nigeria, could legally do business in Nigeria through HESNL, a company registered in Nigeria vide **Salmon v. Duncombe (1886) 11 App Cas. 627,**

Re King, deceased (1963) Ch. 459, Re Svenska Aktiebolaget Gas Accumulator's Application (1962) 1 W.L.R. 657 at 662 – 663; and that whether HESNL is an agent of the respondent or an independent contractor is not a question of law, but a question of mixed law and fact, which quite apart from the fact that there are insufficient materials on record to determine it, the issue not being of law cannot be inquired into on appeal vide section 57 of CITA; and that, at any rate, a foreign company such as the respondent lacking legal capacity to operate in Nigeria could operate through an agent within jurisdiction as was done by the respondent through HESNL in Exhibits F, G and K.

Grounds 4, 5 and 6 of the amended notice of appeal were argued together under issue (c) supra to the cumulative effect that the findings of fact of the Body that the respondent and HESNL are contractors in the contracts in Exhibits F and G should be accepted as binding as it is not perverse vide the cases of **Olorunfemi v. Asho (1999) 1 NWLR (pt. 585) 1 at 9** and **Chukwueke v. Okoronkwo (1999) 1 NWLR (pt. 587) 410 at 418**; that there was no evidence before the Body that the income due to the said two contractors would go solely to the respondent, so it has to be accepted that the income would be shared by the respondent and HESNL in the manner spelt out by Exhibit K in pages 485 – 492 of the record.

Consequently, it was argued by the respondent that the court below was right to hold that the Body erred by allowing the appellant to tax the income of the respondent from Exhibit K together with the separate income of HESNL, a distinct entity from the respondent, arising in the same transaction in Exhibit K which amounted to double assessment or double taxation contrary to the ordinary meaning of section 26 of CITA read with the cases of **Ogbuyinya v. Okudo (1979) 6 – 9 SC 32, Uwaifo v. A-G. Bendel State (1982) 7 SC 124, Mobil v. F.B.I.R. (1977) 3 S.C. 53** for the proposition that words in an enactment be given grammatical construction by the court.

The respondent further argued that tax laws must be construed according to the clear words used by the enactment without inference or interpolation and that in the event of ambiguity in a tax statute, the ambiguity should be resolved against the tax authority citing in support the cases of **Cape Brandy Syndicate v. Inland Revenue Commissioners (1921) KBD 64 at 71, Ormand Investment Co. v. Betis (1928) All ER 709 at 718, Fasogbon v. Layade (1999) 11 NWLR (pt. 628) 543 556, Peenok Investment Ltd. v. Hotel Presidential Ltd. (1982) N.S.C.C. vol. 13 477 at 487.**

The respondent also argued that by declaring the transaction illegal, the Body was dealing with whether the respondent could take advantage of an illegality and had nothing to do with the meaning to be ascribed to the key phrase *"that part of the turnover"* in section 26 (1) of CITA which meant the turnover that went to the respondent only, not inclusive of the turnover that went to its subsidiary, HESNL, the latter of which should not have been assessed to tax against the respondent as was done by the appellant; therefore the court below was, according to the respondent's contention, right to hold that the Body was wrong to agree with the assessment to tax of the respondent by the appellant with respect to the turnover or income of HESNL, a separate entity from the respondent, which amounted to double taxation.

The respondent argued, in conclusion, that the appeal should be dismissed and the decision of the court below affirmed, because the additional assessment to tax made by the appellant against the respondent was invalid and contrary to law in that the relationship between the respondent and HESNL vis-à-vis the contracts they entered into with third parties in Exhibits F, G and K were legal and not contrary to section 54 of CAMA, as respondent's recharges are an allowable deduction from its turnover pursuant to section 26 (1) of CITA.

The appellant's reply brief dated 27.1.14 and filed on 28.1.14, contended that the cases cited by the respondent on fair hearing are distinguishable in that the Body took the issue of illegality of the transaction suo motu upon the evidence before it without giving the appellant advantage over the respondent and that the failure of counsel to address the Body on the issue would not, per se, vitiate the proceedings vide **Olubodun v. Lawal (2008) 17 NWLR (pt. 1115) 1 at 37 and Ibori (supra)**; that the issue whether the respondent carried on business in Nigeria at the material time was not argued at the court below and should be side-stepped and pursuant to powers of the Court it should examine Exhibits F and G and uphold the finding of the Board, and that the appeal be allowed.

In my considered opinion, the issues formulated by the appellant are adequate for the discussion. I most respectfully adopt the said issues towards resolution of the appeal.

A miscarriage of justice from denial of fair hearing becomes obvious where the breach leads to an adverse decision by the court against the party complaining of the breach like where the point in contest is resolved against the party complaining of the breach. See **Stirling Civil Engineering (Nig) Ltd. v. Yahaya (2005) 11 NWLR (pt. 935) 181**.

In the instant case, the issue of illegality was taken and decided suo motu by the Body. But the issue taken suo motu by the Body did not affect the kernel of the case whether the respondent was liable to tax in the circumstances of the case. For clarity, the Body held in page 209 of the record that:

> *"it would thus appear that Exhibits F and G run foul of section 54 of CAMA, thereby rendering the transactions illegal. But this fact does not preclude the Nigerian Company from demanding its own income based on the agreement between it and HWAL".*

The Body did not void the transaction, nor did the Body hold that the income from the transaction that ran "foul" of section 54 of CAMA made it not assessable to tax. Nor did the Body deprive respondent and HESNL of the proceeds from the transaction. No injury whatsoever was caused to the parties as a result of the extract (supra) of the holding of the Body on issue of illegality of the transaction the Body had raised and decided suo motu, albeit in neutral language, by using the phrase "it would thus appear" to cloak the holding.

Although the issue of illegality of the transaction was taken and resolved suo motu by the Body, its resolution had nothing to do with the substance of the dispute. The fact that the respondent was not heard on it was immaterial, as it did not dwell on the crux of the dispute (liability to tax) and could not have amounted to denial of fair hearing as to have caused miscarriage of justice to the respondent who was in no way adversely affected by it, therefore the court below was wrong to have preoccupied itself with the issue which was not decisive to the dispute between the parties. See **The Registered Trustees of the Rosicrucian Order AMORC (Nigeria) v. Awoniyi and Ors. (1994) 7 – 8 SCNJ 390, Leaders and Co. Ltd. v. Bamaiyi (2010) 18 NWLR (pt. 1225) at 341, Ogembe v. Usman (2011) 17 NWLR (pt. 1277) 638 at 656.**

Also, the issue of illegality which the Body took upon itself to decide without hearing the parties pertained to a transaction that was found as a fact by it to be ex facie illegal in virtue of Exhibits F and G. I believe, modestly too, that a fact finding body of experts in taxation, such as the Body, is entitled to examine on the face of documentary evidence, such as Exhibits F and G, to ascertain their value/thrust and/or integrity/status. And by so doing, the Body would, in my modest view, be merely evaluating the evidence before it which, I think, is a legitimate primary function of a fact finding body that does not require the input of the parties and cannot tantamount to the raising of an issue on the documentary evidence suo motu. See **West African Breweries Ltd. v. Savannah Ventures Ltd. and Ors. (2002) 5 SCNJ 269 at 787 (lines 17 – 32) and Arabambi v. A. B.**

Ind. Ltd. (2005) 19 NWLR (pt. 959) page 1 on the powers of a court or adjudicator to comment on documentary evidence before it. See further the case of **Ikenta Best (Nig) v. A – G., Rivers State (2008) 2 SCNJ 182** to the effect that a court can only be accused of raising an issue, matter or fact suo motu if the issue, matter or fact did not exist in evidence and/or in litigation.

More important is the legal position that an issue of ex facie illegality of a contract or transaction observed by the Body to be present in Exhibits F, G and K could be taken judicial notice of by the Body. As stated by the Apex Court in **Oko v. Ntukidem (1993) 2 NWLR (pt. 274) 124 at 135 (para F)** per the lead judgment of Wali J.S.C., (as he was) the categories of items judicial notice could be taken of, by an adjudicating body, are open-ended or not closed.

It was also held by the Court in the case of **S.D.C. Cem. (Nig) Ltd. v. Nagel and Co. Ltd. (supra)** per Ogbuagu, J.C.A., (later J.S.C.), that a court or an adjudicating body can take judicial notice of a transaction that is ex facie illegal in these words –

> *"It seems to me that it is only when the contract ex facie is found to be illegal, that it does not matter whether illegality has been pleaded or not. This is because, it will be a point of law that can be raised by either the parties, or the court suo motu. The court will take judicial notice of it, if it appears on the face of the contract. See* ***Young v.***

> ***Mayor of Leemington (1882) 3 Q.B. 575*** *and* ***Mellis v. Shirley Local Board 16 Q.B.D, 446*** *referred to in the case of* ***Lagos State Dev. & Property Corp. v. Adold/Stamm International (Nig) Ltd. (1994) 7 NWLR (Pt.358) 545, (1994) 7 SCNJ (Pt. 111) 625 at 644 – 645****".*
> *(My emphasis).*

See again the cases of **Adesanya v. Otuewu (1993) 1 NWLR (pt. 270) 414 at 453 (para F), Fasel Services Ltd. v. N.P.A. (2009) 4 SCJN 242 at 255 or (2009) 4 – 5 SC (pt. 111) 101 at 118** per the lead Judgment of Mohammed, J.S.C. (now C.J.N.), **Ajayi v. Total Nigeria Plc. (2013) 15 NWLR (pt.1378) 423 at 427.**

Further, in the case of **Omokuwajo v. F.R.N. (2013) 9 NWLR (pt. 1359) 300 at 332,** his Lordship, Rhodes-Vivour, J.S.C., held inter alia that –

> *"The need to give the parties a hearing when a Judge raises an issue on his own motion or suo motu would not be necessary if:*
> *(a) the issue relates to the courts own jurisdiction.*
> *(b) <u>both parties are/were not aware or ignored a statute which may have bearing on the case. That is to say where by virtue of statutory provision the Judge is expected to take judicial notice. See section 73 of the Evidence Act.</u>*
> *(c) when on the face of the record serious questions of the fairness of the proceedings is evident".*
> *(My emphasis).*

See again **Gbagbarigha v. Toruemi and Anor. (2013) 31 WRN 35 at 51 – 52; Comptier Commission v. Ogun State Water Corporation and Anor.**

(2002) 7 SCM 43, Victino Fixed Odds Ltd. v. Joseph Ojo and Ors. (2010) 3 SC (pt. 1) page 1.

So, ex facie illegality being one of the items a court could take judicial notice of, without requiring the parties to address it on the issue as stated (supra), the court below erred by holding that the Body was wrong to raise and decide suo motu the issue of ex-facie illegality of the contract or transaction in Exhibits F and G.

In addition, the failure to give parties or their counsel the opportunity to address the court on an issue is not necessarily fatal to the outcome of the case, all the moreso none of the parties established any miscarriage of justice thereby vide **Ogunsanya v. State (2011) 6 – 7 SC (pt. 11) 56, Orepekan v. Amadi (1993) 11 SCNJ 68, Niger Construction Ltd. v. Okugbemi (1987) 4 NWLR (pt. 67) 787 at 792**.

At any rate, and, in my considered opinion, the issue of illegality as distinct from criminality of a transaction does not affect the assessment to tax of the income derived from the transaction, so whether the transaction in Exhibits F, G, and K was ex facie illegal was immaterial to the liability to tax of the respondent to be assessed by the appellant from the transaction. See the authoritative works of Barry Pinson on Revenue Law (Twelfth Edition) by John Gardiner at page 22 as follows:

> *"Once it is established that an activity constitutes trading, any profits thereof which are illegally obtained are nevertheless assessable to tax. The trader cannot rely on the incidental illegality to avoid tax. For this reason, profits derived from ultra vires trading are taxable. It is doubtful if systematic crime can itself constitute a trade."*

See also Maxwell on The Interpretation of Statutes (Twelfth Edition) pages 277 – 278 and the cases of **Mann v. Nash (1932) 1 K.B. 752, S. Southern (Inspector of Texas) v. A. B. Limited (1993) 1 K.B. 713, Minister of Finance v. Smith (1927) A.C. 193.**

In the result, I most respectfully resolve issue (1) (supra) in favour of the appellant to the effect that the court below was in error to have set aside the decision of the Body on the premise that it suo motu raised and decided the issue of ex-facie illegality of the transaction or contract contained in Exhibits F and G.

Section 26(1) of CITA 1990 reads –

> *"26(1) <u>Notwithstanding section 29 of this Act</u>, where in respect of any trade or business carried on in Nigeria by any company (whether or not part of the operations of the business are carried on outside Nigeria) it appears to the Board that for any year of assessment, the trade or business produces either no assessable profits or assessable profits which in the opinion of the Board are less than might be expected to arise from that trade or business or, as the case may be, the true amount of the assessable profits of the company cannot be readily ascertained, the Board may, in respect of that trade*

or business, and <u>*notwithstanding any other provisions of this Act if*</u> *the company is a –*

(a) Nigerian company, assess and charge that company for that year of assessment on such fair and reasonable percentage of the trunover of the trade or business as the Board may determine.

(b) Company other than a Nigerian company, assess and charge that company for that year of assessment on such fair and reasonable percentage of that part of the turn-over of the trade or business attributable to the operations carried on in Nigeria, as the Board may determine.

(2) The provisions of this Act as to notice of assessment, <u>*additional assessment*</u>*, appeal and other proceedings shall apply to an assessment or additional assessment made under this section as they apply to an assessment or additional assessment made under any other section of this Act". (My emphasis)*

It is now obvious and settled that tax laws are construed narrowly or strictly sticking to the ordinary meaning of the words used therein without adding any gloss on them. The Court put the matter in the case of **Ahmadu and Anor. v. The Governor of Kogi State and Ors (2002) 3 NWLR (pt. 755) 502 at 522** per the lead judgment of Muntaka-Coomassie, J.C.A. (now J.S.C.) in the captivating words which I gratefully copy below thus –

"In a taxing legislation, one has to look merely at what is clearly said. There is no room for any intendment. There is no equity about a tax. There is no presumption about a tax. Nothing is to be read in and nothing is to be implied,

> *one can only look fairly at the language used. But the strictness of the interpretation may not always enure to the subject's benefit, for "if the person sought to be taxed comes within the letters of the law, he must be taxed, however great the hardship may appear to the judicial mind" – per* ***Lord Cairns in Partington v. Attorney-General (1869) L.R. 4 H.L. 100 at p. 122. See Maxwell on The Interpretation of Statutes 12th Edition by P. St. J. Langan at p. 256"***

See also **Okupe v. F. B. I. R. (1974) 4SC 93, Aderawos Trading Co. Ltd. V. F.B.I.R. (1966) L.L.R. 195 at 200 or (1966) 2 ALR (Commercial) 219, Ormond Investment Co. v. Betts (1928) A.C. 143**.

Section 26 of CITA (supra) which is drafted in plain language will thus receive the interpretation ordained by the decision in **Ahmadu (supra)** and the string of cases (supra) on the issue. The draftsman used the opening phrase "Notwithstanding anything contained in section 29 of this Act..." and the closing phrase "notwithstanding anything contained in the Act" to subordinate section 29 and the other provisions of CITA to section 26 thereof.

Section 26 of CITA thus has prevailing force over the other provisions of CITA. See **N.D.I.C. v. Okem Enterprises Ltd. (supra) Osakue v. F.C.E. Asaba (2010) 10 NWLR (pt. 1201) page 1, Kotoye v. Saraki (1994) 7 – 8 SCNJ 524**. In effect, section 26 of CITA is exclusive of and overrides the provisions of CITA including any subsidiary/delegated legislation made thereunder.

A holistic construction of section 26 of CITA (supra) entitles the appellant to assess to tax the income of the respondent by way of additional assessment where found necessary by the appellant, like in cases of discovered undeclared income not covered by the initial or first assessment to tax of a taxpayer. By making the additional assessment to tax on the undeclared income of the respondent subsequently found out by the appellant, the appellant cannot be accused of revisiting or taxing over again the initial declared income that was earlier taxed as to amount to double taxation.

In other words, what the appellant assessed to tax was the income omitted to be submitted or declared to the appellant by the respondent in the original assessment occasioned by the respondent's non-disclosure at the material time of the original assessment to tax. Put in another way, it was the undeclared income subsequently discovered by the appellant through tax audit that was taxed which is covered by the supervening section 26 (3) of CITA. It was not a case of taxing twice the same income or asset or a situation tax was levied on an income that had already been taxed.

The complaint of the respondent is not that HESNL had already been assessed to tax over the share of the income that accrued to it through its transaction with the respondent in Exhibits F, G and K. Although double taxation occurs because corporations are considered separate from their shareholders and may involve taxation of same earnings at two different levels, the income of the respondent initially assessed to tax was not the same unit of income of the respondent that had been originally assessment to tax, but the undeclared portion of the income the respondent was to remit to HESNL, its subsidiary, registered in Nigeria.

There is also section 11 of CITA to this effect –

> *"11(1) The profits of a Nigerian company shall be deemed to accrue in Nigeria wherever they have arisen and whether or not they have been brought into or received in Nigeria.*
>
> *(2) The profits of a company other than a Nigerian company from any trade or business shall be deemed to be derived from Nigeria to the extent to which such profits are not attributable to any part of the operations of the company carried on outside Nigeria."*

I believe a subsidiary company is one owned or controlled by another company (Oxford Advanced Learner's Dictionary (7th Edition) page 1475). An affiliate company is equally a company that is connected with or controlled by another larger company (Oxford Advanced Learner's Dictionary (7th Edition) page 24.

In effect, HESNL being a subsidiary or an affiliate of the respondent is owned and/or controlled by the respondent, the larger company, so by assessing to tax the income of the respondent, the larger company, derived in Nigeria, its affiliate or subsidiary, HESNL, was, inevitably, covered by the said assessment to tax.

A company not registered in Nigeria but derives income from a transaction in Nigeria through its affiliate or subsidiary cannot, in my modest opinion, dispute assessment to tax on the profit or income it remits to the subsidiary as the subsidiary's share of the income from the transaction. Because the foreign company, though not registered in Nigeria, is deemed to have generated income in Nigeria by the transaction done in Nigeria. The tax authority is thus concerned essentially with and targets only the income made or deemed to be made on Nigerian soil from any transaction conducted within Nigeria, as was the case here.

Also, the issue whether the transaction was wholly carried out in Nigeria is a question of fact that was determined by the Body. The said question of fact cannot be agitated on appeal vide section 57 (1) of CITA limiting appeals from the Body to question of law alone.

I do not see double taxation here. It would have been double taxation if the same (the respondent and its subsidiary, HESNL) were taxed twice on the same income, which was not the case here. The court below was, with full deference, wrong to hold that there was double taxation of the respondent by the appellant. The court below should not, again, with full deference, have set aside the additional assessment to tax on the undeclared income the respondent derived from the transaction in Exhibits F (pages 465 – 471 of the record), G (pages 472 – 477 of the record) and K (pages 485 – 492 of the record) for remission to its subsidiary, HESNL. On the whole, there is merit in the appeal. I would allow it.

There is a cross-appeal by the respondent/cross-appellant against part of the decision of the court below. The cross-appeal was filed on 14/12/2011. The respondent/cross-appellant's brief of argument filed on 19.12.11, submitted these issues for determination –

> "(1) *Whether the original assessments were final and conclusive and if they were, whether the Respondent could re-open them on the same facts and issue;*
> *(2) Whether the lower court was right to hold that Exhibit S (the Information Circular No. 93/02) is merely 'the personal opinion' of its maker;*
> *(3) Whether a legitimate expectation had been created by the combined reading of Exhibits B, C and S in favour of the applicant (sic) such that the Respondent is barred in the circumstance from denying.*"

It was argued on issue (1) supra that the original assessment to tax made by the cross-respondent was based on section 47 (3) of CITA which made the original assessment final and conclusive and could not be re-opened, save on new matters or facts, so the cross-respondent was not entitled to make the additional assessment to tax vide **F.B.I.R. V. Nigerian General Insurance Co. Ltd. (1969) N.S.C.C. (vol. 6) 387 at 401**.

It was argued on issue (2) (supra) that Exhibit S, the information circular issued by the appellant on 22.03.93 for the administration of CITA pursuant to sections 2 (1) (4) and 3 (1) (3) of CITA which, according to the cross-appellant, the court below wrongly held was an opinion on a point of law upon which there was no estoppel when Exhibit S had the force of law and did not conflict with the parent law, CITA, nor was it an element of illegality as to make it ultra vires the enabling or parent legislation and is binding on the cross-respondent who should have followed the same Exhibit S in the 2002 assessment to final tax of the cross-appellant – vide Administrative Law by Wade (9^{th} Edition) pages 857 – 858, **The King v. Electricity Committee Co. Ltd. and Ors. (1924) 1 KB 171, A. – G., v. De Keyser's Royal Hotel Ltd. (1920) All E.R. 80, Church v. Inclosure Commissioners (1962) 11. C.B (N.S) 664, R. v. Secretary of State for Social Security Ex. P. Joint Council for the welfare of Immigrants**

(1997) 1 WLR 275, R. v. (on the application of Asif Javed) v. Secretary of State for the Home Department (2002) QB 129.

It was also argued on the doctrine of legitimate expectation that the representations made by the cross-respondent in Exhibits B and C taken together with the circular in Exhibit S estopped the co-respondent resiling from the said representations, therefore the court below erred in holding that the said representations to the effect that recharges are allowable deductions for a non Nigerian company did not apply to the cross-appellant when the representations in question were caught by the doctrine of legitimate expectation and equality or fairness/certainty or consistency in the conduct of public affairs by public authority in the realm of Public Law vide **Lever Finance Ltd. v. Westminister City LBC (1971) 1 Q.B. 222 at 230, R. v. Brighton Corporation, ex parte Thomas Tilling Ltd. (1916) 85 LJKB 1552 at 1555, R. v. Secretary of State for Home Department Ex. P Khan (1985) 1 All E.R. 40, R. v. Secretary of State for Home Department Ex. P. Ruddock (1987) 1 W.L.R. 1482, R. v. Inland Revenue Commissioners Ex. P. v. Unilever Plc. (1996) S.T.C. 681, R (Bapio Action and Anor.) v. Home Secretary WLR 2008, R (on the application of HSMP Forum UK Ltd) v. Secretary of State For Home Department EWHC 711 (Admin) 6th April, 2009, Re Liverpool Taxi Owner's**

Association (1972) 2 All ER 589, A. – G., Hong kong v. Ng Yuen Shiu (1983) 2 All E.R. 346, 350 – 351, Stitch v. A. – G., Federation (1986) 5 NWLR (pt. 46) 1007 at 1029, R. v. Ministry of Agriculture, Fisheries and Food Ex. P. Hamble (Offshore) Fisheries Ltd. (1995) 2 All E.R. 714, R. v. Home Secretary Ex. P Gangadeen (1998) 1 F.L.R. 762, R. v. Inland Revenue Commissioner Ex. P. Preston (1985) A.C. 835, R. v. Inland Revenue Commissioners Ex. P. MFK underwriting Agencies Ltd. (1990) 1 W.L.R. 1545, Matrix Securities Ltd. v. Inland Revenue Commissioners (1994) 1 W.L.R. 334.

It was also argued that the court below mistook the argument on the doctrine of legitimate expectation by likening it to estoppel when the two concepts are distinct in that estoppel applies when a party is not allowed to approbate or reprobate, while legitimate expectation is based on the idea of fairness, certainty and equality in the conduct of public affairs by ensuring that public authorities should not alter abruptly existing policies to the detriment of the legitimate expectation of members of the public who had arranged their affairs in accordance with the existing policy. The cross-appellant, accordingly, urged that the cross-appeal be allowed and the decision of the Body on the additional assessment to tax of the cross-appellant be set aside.

The cross-respondent's brief filed on 07.0411, but deemed properly filed on 25.09.14, submitted these issues for determination –

> "(1) *Whether the original assessments were final and conclusive and if they were, whether the Respondent could re-open them on the same facts and issue;*
>
> *(2) Whether the lower court was right to hold that Exhibit S (the Information Circular No. 93/02) is merely 'the personal opinion' of its maker;*
>
> *(3) Whether a legitimate expectation had been created by the combined reading of Exhibits B, C and S in favour of the applicant (sic) such that the Respondent is barred in the circumstance from denying.*"

The cross-respondent contended on the first issue (supra) that, since it was revealed that the cross-appellant was assessed at a less amount than that which ought to have been charged, the cross-respondent was right to make the additional assessment to tax in question, so the initial assessment was not final or conclusive and did not foreclose the cross-respondent's authority to make the additional assessment in question vide **Mobil Oil (Nig.) Ltd. v. Federal Inland Revenue Board (1977) 3 S.C. 53**.

It was argued by the cross-respondent on the issue of the doctrine of legitimate expectation that in virtue of the statement in the book titled Wade and Forsyth on Administration Law (supra) 502 that the doctrine is a question of fact and the Body having found as a fact that no legitimate expectation was created by Exhibits B, C and S, the issue being a question of fact, not a question of law, is not appealable; all the more so tax payers seeking revenue allowances for their proposal must make clear and unambiguous full disclosures before there would be legitimate expectation by the taxpayer from the assurance given by the tax authority, which the cross-appellant failed to make at the initial or original tax assessment vide Administrative Law by Wade (supra).

It was further argued that clear statutory words override any expectation howsoever founded vide **Administrative Law by Wade (supra), and the cases of R. v. Inland Revenue Commissioners Ex. P. Matrix Securities Ltd. (1994) 1 WLR 1545; R. v. Inland Revenue Commissioners ex. P. MFK underwriting Agencies Ltd. (1990) 1 WLR 334, R. v. DPP ex. P Kebilene (1999) 5 WLR 972, R. v. Secretary of State for Education ex. P. Begbie (2000) 1 WLR 1115.**

The cross-respondent added in argument that Exhibit S cannot override the clear provisions of section 26 (1) of CITA which was exhaustively treated by the Body and the court below against the cross-appellant; that, whilst there was arbitrariness in the exercise of ministerial powers amounting to ministerial perfidy in **Stitch (supra),** such was not the situation in the instant case; that, whether the court below confused estoppels with legitimate expectation, the ultimate decision reached by the court below favoured the cross-appellant, showing the conclusion reached by the court below did not lead to a miscarriage of justice, especially as there is overlap between legitimate expectation and estoppel vide **South Buckinghamshire DC v. Flanagan (2002) 1 WLR 2724**, upon which the cross-respondent urged that the cross-appeal be dismissed.

Respecting the cross-appeal, it is pertinent to state that sections 26 and 48 of CITA (supra) create room for additional assessment to tax of a tax payer. Section 26 of CITA is superior to section 47 thereof vide the closing phrase "notwithstanding any other provisions of this Act" contained in section 26 of CITA which gives it precedence over the other provisions of CITA including, of course, section 47 thereof. See **A. – G. Federation v. Abubakar (2007) 3 NWLR (pt. 1035) 117, Olatunbosun v. N.I.S.E.R. Council (1988) 3 NWLR (pt. 80) 25, Total Nigeria Plc. v. Morkah (2002) 9 NWLR (773) 492, N.D.I.C. v. Okem (supra), Osakue v. F.C.E. Asaba (supra) and Kotoye v. Saraki (supra).**

It is necessary to copy section 48 (1) of CITA below thus –

> *"48(1) If the Board discovers or is of the opinion at any time that any company liable to tax has not been assessed or has been assessed at a less amount than that which ought to have been charges, the*

> *Board may, within the year of assessment or within six years after the expiration thereof and as often as may be necessary, <u>assess such company at such amount or additional amount, as ought to have been charged, and the provisions of this Act as to notice of assessment, appeal and other proceedings shall apply to such assessment or additional assessment and to the tax charged thereunder.</u>*

> *Provided that where any form of fraud, willful default or neglect has been committed by or on behalf of any company in connection with any tax imposed under this Act or under the Companies Income Tax Act the Board may at any time and as often as may be necessary, assess such company at such amount or <u>additional amount</u> as may be necessary for the purpose of making good any loss of tax attributable to the fraud, willful default or neglect." (My emphasis).*

And in the case of **Mobil Oil Ltd. v. F.B.I.R. (1977) 3 S.C. 53 at 89** cited by the cross-respondent, the majority judgment prepared by the distinguished jurist, Bello, J.S.C., (later CJN; now of blessed memory) discussed the question of additional assessment to tax upon income subsequently discovered or found out by the tax authority in analogous circumstances thus –

> *"In our view the interpretation to be given upon the provisions of proviso (b) to Section 60 of the Act is this: that the Board is prevented from making assessment or additional assessment which may involve re-opening of any issue, on the same facts, which has been determined for that year of assessment; but <u>the Board is not prevented from making assessment or additional</u>*

<u>assessment, not only on discovery of new facts but also on discovery of new issues which, though founded on the same facts have not previously been determined</u>. It seems to us to construe the provisions of the proviso that it means that discovery of new facts is necessary in order to raise new issues for determination before making additional assessment may defeat and frustrate the power of the Board under Section 50 of the Act which power is expressly preserved by the proviso." (My emphasis).

See also the English case of **Cenlon Finance Co. Ltd. v. Elwood (1962) A.C. 782** cited with approval in **Mobil Oil Ltd. (supra) at pages 81 – 82** and Pinson on Revenue Law (supra) page 359 (paragraph 17 – 08).

I do not agree with the cross-appellant that Exhibit S, the Public Notice, issued by the cross-respondent, (pages 524 – 538 of the record) qualifies as a piece of delegated or subsidiary legislation deriving its efficacy from sections 2 (1) and (4) and 3 (1) and (3) of CITA, the parent law. Because both sections subject the cross-respondent's powers to the Minister of Finance which powers are to be exercised in the manner prescribed by the minister. The power to amend the First Schedule to CITA is also given to the minister under section 4 of CITA, showing the minister is the appropriate person to make bylaws under CITA.

Section 26 of CITA, however, overrides the other provisions of CITA by courtesy of the phrase "Notwithstanding" used by the draftsman in the opening and closing part of section 26 of CITA. See **A. – G., Federation v.**

Abubakar (supra), Olatunbosun v. N.I.S.E.R. Council (supra), N.D.I.C. v. Okem (supra). Therefore, assuming without agreeing that Exhibit S is a piece of subsidiary legislation, it will still yield ground to the substantive overriding impact of section 26 of CITA. See **Ezeugwa and Ors. v. Adimorah |(1993) 1 NWLR (pt. 291) 620 at 626, Schroder Co. v. Major and Co. (Nig) Ltd. (1989) 2 NWLR (pt. 101) 1 at 21 – 22 and Bamgboye v. Administrator-General 14 W.A.C.A. 616 at 619.**

The doctrine of legitimate expectation is not in the realm of estoppel. The court below thought it is a specie of estoppel. It slipped. The cross-appellant is right to submit that the doctrine is not an estoppel. What the doctrine postulates is that where a public body or person acting in public authority has issued a promise or has been acting in a given way the members of the public who are to be affected by the scheme of conducting public affairs in the charted manner would, by law, require the promise or practice to be honoured or kept by the public body or person acting in public authority, save where there exists sound basis not to so insist on the settled scheme of conducting public affairs. The doctrine, therefore, enjoins public bodies to be fair, straight-forward and consistent in their dealings with the public.

In other words, the doctrine of legitimate expectation is based on the existence of regular practice by a public body which the claimant can reasonably expect to continue or subsist and thus relies on the state of affairs to conduct or arrange his business or affairs in anticipation of the availability of the regular practice to cater for the case of the claimant. Fair and open dealing are the pillars of the doctrine. And fairness requires that the exercise of the doctrine of legitimate expectation be moored to full disclosure or utmost food faith by the potential beneficiary of the doctrine. See the apt English case of **R.V. Board of Inland Revenue (supra) 91 at 111** (per Bingham, LJ).

In the instant case, the cross-appellant had not made full disclosure of the income from the transaction. It omitted to declare the income or profit its subsidiary, HESNL, was to derive from the transaction for assessment to tax at the original assessment to tax which covered the declared income or profit of the cross-appellant from the transaction only. In the absence of full disclosure by the cross-appellant of the total income in the first exercise, the cross-appellant could not reasonably rely on Exhibits B, C and S to reap benefit from the doctrine of legitimate expectation which is rooted in utmost good faith by stakeholders concerned with tax matters.

Also, the doctrine of legitimate expectation is said by Wade and Forsyth in their authoritative book on Administrative Law (supra) to be self-evidently a question of fact. Being a question of fact, the doctrine cannot be canvassed on appeal vide section 57 (1) of CITA which confines appeals from the Body to the court below on questions of law alone.

Again, Wade and Forsyth's Administrative Law (supra) states that clear or unambiguous statutory words, such as sections 26 (1) and 48 (1) of CITA dealing with additional assessment to tax of taxpayers, would "override any (legitimate) expectation howsoever founded." In addition, the **Privy** Council case of **A. – G., Hong Kong v. Ng. Yuen Shiu (1983) 2 A C 629 638 (F)** Lord Fraser of Tullybelton, delivering the judgment of the Privy Council, aptly held inter alia that –

> *"It is in the interest of good administration that [a public authority] should act fairly and should implement its promise, <u>so long as the implementation does no interfere with its statutory duty</u>." (my emphasis).*

Further in the useful case of **Ex P. Begbie (2000) 1 WLR 1115** it was held that the application of the doctrine of legitimate expectation was aborted or frustrated by the operation of statute.

A similar result was reached in the case of **Birkdale District Electric Supply Co. Ltd. (1926) AC 355 at 364** followed in **Ex P. Liverpool Taxi**

Fleet Operators' Association (1972) 2 Q.B., 299 to the effect that a person or public authority entrusted with statutory functions for public purpose cannot compromise the functions by entering into any agreement or taking any action incompatible with the discharge of the statutory functions.

Since section 26 of CITA supersedes Exhibits B, C and S, the doctrine of legitimate expectation lavishly argued by the cross-appellant yields ground to the clear words of section 26 of CITA. See Administrative Law by Wade (supra). So much on the doctrine of legitimate expectation.

It is pertinent to state that the court below held that the original assessment to tax was not final and conclusive and was "rightly subject to the Tax Audit Exercise which was carried out by the Respondent." There is no appeal or cross-appeal against the said holding. It stands accordingly. See **Jimoh v. Akande (2009) 1 S.C.N.J. 107 at 137 – 138.** By the said holding, the court below agreed that the cross-respondent was right to make the additional assessment to tax on the discovery of income of the cross-appellant, in my view.

Section 11 of CITA (supra) validated the transaction in Exhibits F, G, and K as it is a provision in a special enactment, while section 54 of CAMA is a provision in a general enactment which must bow to section 11 of

CITA. See **N.E.C.O. v. Tokode (2011) 5 NWLR (pt. 1239) 45 at 70, following Akpan v. State (1986) 5 SC 186, at 213 – 214.** So the transaction in question was not illegal.

Some of the points argued on the cross-appeal, though well taken, do not have the significant effect of altering the decision of Body, as they do not affect the core issue of the liability to tax of the cross-appellant which was properly settled by the Body.

In the final analysis, I see no merit in the cross-appeal and hereby dismiss it. Having earlier allowed the appeal, I would set aside the judgment of the court below and restore the decision of the Body in its place. Parties to bear their costs.

JOSEPH SHAGBAOR IKYEGH
JUSTICE, COURT OF APPEAL

COUNSEL:

Mr. A. Kalu, SAN, for the Appellant/Cross-Respondent (with Mr. C.I. Obidike).

Mr. L.O. Akangbe for the Respondent/Cross-Appellant (with Mr. L.A. Sadiq).

CA/L/320/2009

YARGATA BYENCHIT NIMPAR

I was given the privilege to reading in advance a copy of the judgment just delivered by my learned brother, **JOSEPH SHAGBAOR IKYEGH, JCA.**

I agree with the reasoning and conclusion reached in the lead judgment. The judgement has adequately covered the complex issues formulated for determination.

Let me just add that when a tax payer does not make full disclosure of its income, the part kept away when discovered must be taxed by the authorities. The appellant rightly, and as empowered by the law assessed the income not disclosed earlier.

The lead judgment covered the field leaving no room for me to make any useful additions. I too allow the appeal and dismiss the cross appeal. I also abide by the orders made therein.

YARGATA BYENCHIT NIMPAR

JUSTICE, COURT OF APPEAL.

<u>CA/L/320/2009</u>

<u>JAMILU YAMMAMA TUKUR JCA.</u>

My lord Joseph Shagbaor Ikyegh JCA has afforded me the opportunity of reading in draft before today the lead judgment just delivered. I agree with the judgment and have nothing to add.

JAMILU YAMMAMA TUKUR
JUSTICE, COURT OF APPEAL.